

The Assam Cinema (Regulation of Exhibition of Film by Video Cassette Recorders) Rules, 1993

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[Rule](#)

[THE-ASSAM-CINEMA-REGULATION-OF-EXHIBITION-OF-FILM-BY-VIDEO-CASSETTE-RECORDERS-RULES-1993 of 1993](#)

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[The Assam Cinema \(Regulation of Exhibition of Film by Video Cassette Recorders\) Rules, 1993](#)

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[Part I](#)

[General](#)

[1.](#)

Short title and commencement.

(1)

These rules may be called "The Assam Cinema (Regulation of Exhibition of Film by Video Cassette Recorders) Rules, 1993."

(2)

They shall come into force on the date of its publication in the Official

2.

Definition.

- In these rules, unless there is anything repugnant in the subject or context,-

(a)

"building" means a building which is constructed with stone, mud, brick, mortar, cement or other non-inflammable material;

(b)

"Cinema" means any place wherein a public exhibition of film by Video Cassette Recorder is given for commercial material;

(c)

"Form" means a Form appended to these rules;

(d)

"Local Authority" means Municipal Corporation, Town Committee, District Council, Mahkuma Parishad, Development Authority or Gaon Panchayat wherever such authority exists, having jurisdiction in the area;

(e)

"Licensing Authority" means the District Magistrate and includes any authority authorised by the State Government under Section 4 of the

(f)

"Act" mean the Assam Cinema (Regulation) Act, 1953.

(g)

"auditorium" means the portion of the licensed place in which accommodation is provide for the audience or spectators to view the film exhibited through Video Cassette Recorder;

(h)

"film " means a cinematograph film;

(i)

"Government" means the State Government of Assam;

(j)

"person " means any adult male or female individual and includes any company or association or body of individuals, whether incorporated or not;

(k)

"Video Cassette Recorder" means a cinematograph for the purpose of giving cinematograph exhibition of recorder film and includes Vide Cassette Player, 3 Gun Projector, 6 Gun Projector, and any other similar equipments for projection.

3.

Decision of the Government to be final.

- If any question arises as to the interpretation of these rules otherwise than in connection with the prosecution for an offence, the question shall be referred to the Government, whose decision thereon shall be final.

4.

Display of terms and conditions.

- The terms and conditions of the licence issued under this rule, printed in large type, together with the name and address of the licensee affixed thereto, shall be displayed in some conspicuous place at the principal entrance to the auditorium at a height of not more than 1.25 metres from the floor, so that any person entering the licensed premises including the Video Library any acquaint himself with such rules, and, on noticing may breach of them, may report the same to the Licensing Authority.

5.

Age limit.

- No person shall be entitled to obtain or hold any licence under these rules such person has attained the age of twenty years.

6.

Applicability of Electricity Act.

- The licensee shall comply with such of the provisions of the Indian Electricity Act, 1910 (Central Act IX of 1910) and of the rules made thereunder as are applicable to the premises.

7.

Production of licence on demand.

- The licence issued under these rules shall be produced by the licensee on demand by any police officer not below the rank of a Sub-Inspector or by the Licensing Authority or by any person authorised by the Licensing Authority in this behalf.

8.

Smoking prohibited.

- Smoking shall not be permitted within the place of the exhibitions of film through Video Cassette Recorders and in places where Video Libraries are located.

9.

Premises and equipment to be insured.

- Every licensee shall insure the licensed premises, the Video equipments and Video Cassette against the risk of fire.

10.

Records in proof of ownership to be produced.

- If the applicant for the licence is the owner of the site, building and equipments, he shall produce to the Licensing Authority the necessary records relating to his ownership and possession thereof. If he is not the owner, he shall, to the satisfaction of the Licensing Authority, produce documentary evidence to show that he is in lawful possession of the site, building and equipments.

Part II

Approval of Location of the Site and Plan of the Building for Exhibition of Film through Video Cassette Recorders

11.

No objection certificate.

(1)

Every person who intends to put up a building to be used as permanent auditorium shall make an application to the Licensing Authority for "No Objection Certificate" specifying the site where the auditorium is proposed to be put up. The application shall be accompanied by a plan of the proposed site drawn to scale and shall clearly indicate the surrounding roads and buildings which exists up to a distance of 200 metres of the proposed site, schools, hospitals, temples, mosques, churches or other places of public worship being clearly indicated. Each such application shall be accompanied by-

(a)

a "No Objection Certificate" from the Local Authority concerned that there is no objection to the erection of the proposed auditorium hall;

(b)

complete plans, elevations and sections in duplicate of the premises and all erections or buildings thereon drawn correctly to the scale of one-eighth of an inch to one foot and showing the width of all stairway and number of steps in each, the width of corridors, gangways and doorways, the height of the galleries or tiers and the details of the Video Projector and of the plant for generation or conversion of electrical energy;

(c)

a site plan in duplicate on a separate sheet drawn to the scale of one-fortieth of an inch to one foot showing the position of the premises in relation to any adjacent premises and to the public thoroughfares upon which the site of the premises abuts, and the arrangements proposed for the parking of motor cars and other vehicles;

(d)

specifications of the various materials proposed to be used in the construction of the building;

(e)

documents regarding ownership of land by the applicant on which the Auditorium Hall proposed to be constructed.

(2)

On receipt of the application and the plans, the Licensing Authority shall forward the same to the Executive Engineer concerned for approval and the applicant shall be bound to carry out such additions and alterations in the plans as may be directed by the Executive Engineer concerned before the plans are finally approved by him.

(3)

After the plans are finally approved by the Executive Engineer concerned, Licensing Authority, with the prior approval of the Government may grant in Form "A" appended to these rules, a "No Objection Certificate" to the applicant to put up the auditorium building in accordance with the plans finally approved; Provided that such a "No Objection Certificate" does by no means guarantee the issue of a licence which depends on separate application and fulfilment of the requirement of the prescribed rules.

12.

The "No Objection Certificate" so granted by the Licensing Authority shall be valid for a period of one year. If within this period the "No Objection Certificate" is not utilised for obtaining a licence, a fresh "No Objection Certificate" shall be applied for.

13.

Distance between places.

- No exhibition of film through Video Cassette Recorders shall be allowed in a place, if the distance to the nearest permanent or temporary cinema located in the same local area or in an adjacent Gaon Panchayat or town is less than two kilometres; Provided that this rule shall not apply to any exhibition of film through Video Cassette Recorder for domestic purposes to the family members of the house-hold only.

Explanation. - For the purpose of this rule the expression 'local area' means the area within the jurisdiction of the Municipal Corporation, Town Committee or Gaon Panchayat.

Part III

Licence

14.

Kinds of licence.

- There shall be three kinds of licences namely:

(a)

permanent Video Cinema Licence;

(b)

temporary Video Cinema Licence; and

(c)

temporary Touring Video Cinema Licence.

15.

The applicant shall submit his application for licence to the Licensing Authority.

The application shall be accompanied by-

(a)

documentary proof of the ownership of and all rights in the premises and in the Video apparatus to be used therein;

(b)

a "No Objection Certificate" from the concerned Local Authority;

(c)

a certificate from the Executive Engineer, Public Works Department of the area that the rules relating to the structural fitness of the building have been duly complied with;

(d)

a certificate from the Electricity Department of the Government that the electrical installations conform to the required standard and the existing rules;

(e)

a certificate from the District Officer or any other competent authority of Health Department that the arrangements for sanitation conform to the requirements of the rules;

(f)

a safety Certificate regarding the Video Projector from the competent authority of the Government;

(g)

a "No Objection Certificate" from the Officer-in-charge of Distribution, Films Division, Ministry of Information and Broadcasting, Government of India for the duration of the period for which licence is applied for;

(h)

a treasury receipt for the payment of fees for licence at the rate prescribed in Rule 18;

(i)

a clearance certificate from the Superintendent of Taxes of the area concerned to the effect that no amount of tax due under the Assam Amusement and Betting Tax Act, 1939 has remained unpaid:

Provided that the application for Permanent Video Cinema Licences can be submitted only after the applicant has obtained a "No Objection Certificate" under sub-rule (3) of Rule 11.

16.

Grant of licence for permanent Video Cinema.

(1)

licence for a permanent Video Cinema may be granted by the Licensing Authority with the prior approval of the Government in Form B.

(2)

The licence granted shall be valid for one year unless revoked earlier by the Licensing Authority. It may be renewed from year to year by the Licensing Authority.

17.

Renewal of licence.

- The application of renewal of licence shall be submitted at least one month before the expiry of the period for which the licence was granted, to the Licensing Authority accompanied by a fee as prescribed in Rule 18, and certificates mentioned in Rule 15.

18.

Fee for permanent Video Cinema licence.

- A fee of Rs. 1500 shall be levied for the grant of every licence for permanent Video Cinema for the first year and for each subsequent year, the year being calculated from the date of licence. A fee of Rs. 500 shall be payable for a duplicate copy of the licence.

Part IV

Temporary Video Cinema Licence

19.

Application for temporary Video Cinema Licence.

- A person desirous of obtaining licence for a temporary Video Cinema shall apply to the Licensing Authority with the particulars and certificates mentioned in Clauses (a), (b), (c), (d), (e), (f), (g), (h) and (i) of Rule 15.

20.

Grant of temporary Video Cinema Licence.

(1)

A licence for temporary Video Cinema may be granted by the Licensing Authority with the prior approval of the Government in Form 'C' appended to these rules for a period not exceeding six months. This period may, however, be extended for a further period of six months by Licensing Authority with no further extension.

The Licensing Authority, however, with the prior approval of the Government may grant a fresh licence subject to the fulfilment of all legal requirements as provided by the rules.

(2)

On the expiry of any existing licence, the Licensing Authority shall not allow cinema shows to be continued for any period in absence of a valid licence whether on the ground that an application for extension of the existing licence has been made and is under consideration or for any other reason whatsoever.

(3)

The Licensing Authorities shall not allow any cinema show to continue on the expiry of a licence in anticipation of Government approval.

21.

Renewal of temporary Video Cinema Licence.

- The application for renewal of temporary Video Cinema Licence shall be submitted at least fifteen days before the expiry of the period for which the licence was granted to the Licensing Authority accompanied by a fee as prescribed in Rule 22, and certificates referred to in Rule 19.

22.

Fees or temporary Video Cinema Licence.

- A fee of Rs. 100 shall be levied for every month or part thereof for the period for which each temporary Video Cinema Licence is valid. A fee of Rs. 50 shall be payable for a duplicate copy of the licence.

Part V

Temporary Touring Video Cinema Licence

23.

Application for temporary Touring Cinema Licence.

(1)

A person desirous of holding temporary Touring Video Cinema Licence shall apply to the Licensing Authority of the area in which it is proposed to hold the Touring Cinemas.

(2)

Every application for a Touring Cinema Licence shall be accompanied by-

(a)

documentary proof of the ownership of and all rights in the Video apparatus to be used;

(b)

a "No Objection Certificate" from the concerned Local Authority;

(c)

a safety Certificate regarding the Video Projector from the competent authority of the Government;

(d)

a "No Objection Certificate" from the Officer-in-charge of Distribution, Films Division, Ministry of Information and Broadcasting, Government of India for the duration of the period for which licence is applied for;

(e)

a treasury receipt for the payment of fees or licence prescribed in Rule 22.

(f)

a clearance Certificate from the Superintendent of Taxes of the area concerned to the effect that no amount of tax due under the Assam Amusement and Betting Tax, Act, 1939 has remained unpaid.

24.

Grant of Temporary Touring Video Cinema Licence.

- (i) A licence or Temporary Touring Video Cinema may be granted by the Licensing Authority with the prior approval of the State Government, in Form 'D' for a period not exceeding six months:

Provided that no such cinema shows shall be allowed within such a distance as the Government considers reasonable having regard to the surrounding circumstances from the existing hospital, cemetery, grave yard or cremation ground or from an educational institution or place of public worship unless shows are held as a part of any functions or festival of such educational institution or place of public worship.

(ii)

It should be ensured in all cases that no cinema show is allowed for any period whatsoever without a valid licence as required under these rules.

(iii)

No licence granted under Section 4 of the Assam Cinema (Regulation) Act, 1953 read with Rule 25 of this rule shall be renewed. The Licensing Authority, however, with the prior approval of Government, may grant a fresh licence after complying with the provisions laid down in the relevant rules.

25.

Intimation for change of venue of exhibition.

- The holder of a licence for a Touring Video Cinema may shift the venue of the exhibition from place to place within the district of issue, after giving the intimation of his programme and itinerary in advance to the Licensing Authority; provide that all the rules and safety requirements for holding cinema shows shall be duly observed and in case where it is proposed to install a Touring Cinema in a building the provisions of Rule 19 shall be duly complied with by the licensees;

Provided further that a Touring Video Cinema show shall not be held for more than 15 days in any particular place where no other licence is in operation and a licence cannot be operated in more than one place at a time;

Provided further that if the venue of any Touring Video Cinema is not shifted to another place, after exhibition for fifteen days, but restricted in the same place, the licensee is liable to action for violation of the rules.

Part VI

Video Library

26.

Application for Video Library Licence.

- A person desirous of holding a licence for keeping Video Library shall apply to the Licensing Authority in Form 'E'.

27.

Grant of Video Library Licence.

(1)

A licence for keeping Video Cassettes in a Video Library may be granted by the Licensing Authority with the prior approval of the Government in Form 'F'.

(2)

The licence granted under this rule shall be valid for one year unless revoked earlier by the Licensing Authority.

28.

Renewal of Video Library Licence.

- The application of renewal of Video Library Licence shall be submitted at least one month before the expiry of the period for which the licence was granted to the Licensing Authority accompanied by a fee as prescribed in Rule 29, along with the particulars mentioned in Form 'E'.

29.

Fee for Video Library Licence.

- A fee of Rs. 300 shall be levied for the grant of every Licence for Video Library for the first year and for each subsequent year, the year being calculated from the date of licence. A fee of Rs. 100 shall be payable for a duplicate copy of the licence.

Part VII

30.

Recommendation to State Government.

- If the Licensing Authority to whom an application for a licence is made is satisfied that all the prescribed requirements of the rules have been fulfilled and the economy of the place justifies and there is no objection of any kind to the grant of such licence, it may forward the application to the Government with its recommendation stating the period for which and any particular condition or restrictions under which the grant of licence is recommended by it.

31.

Inspections.

(1)

The competent officers of the Public Works Department, the Electricity Department and the Health Department having jurisdiction in the area shall make necessary inspections of the premises and the building in their respective sphere of duty for the purpose of giving the prescribed certificates.

(2)

Defects revealed by such inspections shall be brought to the notice of the applicant or licensee and also of the Licensing Authority, who may refuse to grant or renew the licence unless and until they are remedied to its satisfaction.

(3)

The competent officers of the Public Works Department the Electricity and Health Department having jurisdiction in the area, or the make necessary inspections of the premises and the building within their respective spheres of duty for the purpose of giving the prescribed certificates. In a place where public go for entertainment and recreation, and where public safety is of utmost consideration, it is desirable that the concerned officer of Government Department should make a proper inspection to ensure that the auditorium building is structurally fit, sanitation is good and the electrical installation is safe to continue as a shown house. The concerned officers, should therefore, give serious attention to this matter and ensure that the certificates of structural fitness, electrical installations and sanitation are issued by the competent officers of these Departments after proper inspection of the premises and the auditorium building, instead of

issuing certificates as routine exercise.

32.

Free access to Inspecting Officers.

- (i) The officers mentioned below have free access to licensed premises at all hours of the day:

(a)

The Licensing Authority or any officer nominated by it for the purpose of carrying out the duties of the Licensing Authority under the Act and under rules and for checking that the provisions of the Act, the Rules framed thereunder and the conditions of the licence are duly complied with:

(b)

any Police Officer who is required by a general or special order of the Licensing Authority or the District Superintendent of police to attend the same;

(c)

the officers of competent jurisdiction of the Department of Health, Public Works and Electricity for the purpose of seeing that the provisions of these rules duly observed; and

(d)

Regional Officer under the Central Board of Film Censors or an officer authorised by him in writing.

(ii)

The licence and the plan description, if any, attached thereto shall be produced by the licensee demand by the Licensing Authority or by any officer authorised by it or by these rules to enter a place licensed under Section 4 of the Act.

(iii)

The licensee, his servants, and agents shall comply with any orders issued by the Licensing Authority or by the Inspecting Officers from time to time or as occasion arises for the safety or convenience of the public or for the preservation of the order of the public peace.

33.

Additions and alterations.

(1)

No addition to or alteration in any portion of any premises licensed under Section 4 of the Act necessitated by fire, any other calamity or any other cause shall be made without the sanction of the Licensing Authority.

(2)

The licensee shall give notice in writing to the Licensing Authority of his intention to make any such addition or alteration and such notice shall be accompanied by complete plans, elevations and sections and specifications of the work proposed to be executed in the manner prescribed in Rule 11.

(3)

The work shall not be commenced until the consent of the Licensing Authority has been obtained and the Licensing Authority shall not give consent unless the Executive Engineer, Public Works Department certifies that the proposed addition or alteration is in accordance with these rules.

(4)

No addition to or alteration in any part of the Video apparatus and its appurtenances or of the lighting or other electric arrangements shall be made without the sanction of the Licensing Authority.

(5)

The licensee shall give notice in writing to the Licensing Authority of his intention to make any such addition or alteration and the Licensing Authority shall not give sanction thereto unless an officer of competent jurisdiction of Electricity Department certifies that the addition or alteration is in accordance with the provisions of these rules.

34.

All 'building laws or other regulations imposed by the municipal bye-laws or by any other laws, or by-rules under law for the time being in force, shall be strictly adhered to so far as they are not inconsistent with these rules.

35.

A permanent licence shall only be granted or renewed to respect of a building with regard to its location, structure fittings, electrical and other equipment which cover it when complies with the provisions of the rules in this Part.

36.

Construction.

- The floor, roof, private boxes, balconies, galleries, tiers, partitions, ventilators and every room, lobby, corridor, staircase and passage devoted to the use of the public shall be constructed of fire resisting materials.

37.

No portion of the place licensed shall be occupied or used as a hotel, boarding or lodging house, factory, workshop or manufacturing or for storage or for residential purposes except as the Licensing Authority may allow.

38.

Seating accommodation.

- The actual number of persons to be admitted to each class of accommodation provided in the place of exhibition shall be arrived at by calculating at the rate of 20 per cent per 10 square meters of floor area, in respect of that portion of the premises which is provided with chairs having backs and arms. The following provisions shall be observed in providing seating accommodations:

(i)

Chairs shall be battens together in complete lengths.

(ii)

In all cases there shall be an intervening space of at least 35 centimeters between the back or one seat and the front of the seat immediately behind between perpendiculars.

(iii)

The distinction between the screen and the first row of seats shall not be less than 3 metres and no person shall be admitted within such space.

(iv)

The number of seats shall not exceed the seating capacity (except in case of 3-Gun, 6-Gun video projector) specified below:

Width of the Screen

Maximum Seats

(a) Not exceeding 50 c.m.

30 Seats

(b) Not exceeding 67.5 c.m.

56 Seats

(c) Not exceeding 71.5 c.m.

75 Seats

(d) Not exceeding 100 c.m.

100 Seats

(e) Exceeding 100 c.m.

125 Seats

(v)

In case of exhibiting shows with the help of 3-Gun and 6-Gun Video projector seating capacity shall be varied in accordance with the size of the Screen.

39.

Rate of admission to be fixed.

(1)

The Licensing Authority shall fix the actual rates of admission provided in the place of exhibition after taking into account the proposals of the licensee, the amenities provided in the place of exhibition, the prevailing rates of admission in similar places of exhibition in similar localities within his jurisdiction and any other relevant ticket factor.

(2)

There will be an Entertainment Tax on each admission ticket as would be determined by State Government in Finance Department under relevant laws for such taxes.

(3)

The rates prescribed for admission in the place of exhibition shall be clearly indicated by means of board or otherwise.

40.

Sale of tickets.

(1)

The licensee shall make arrangements to the satisfaction of the Licensing Authority for the sale of tickets for admission. The tickets shall be numbered to correspond to the number of the respective seats in the auditorium and no more tickets shall be sold for any performance than the seats available there.

(2)

Every ticket shall be torn into two parts at the gate of admission, one part thereof shall be retained by the gate keeper, the other part remaining with the holder.

41.

Maintenance of records.

- Every licensee shall at all times keep and maintain full and up to date sets of records showing sale of tickets in each show and their rates showing separately the taxes and fees realised and shall produce on demand all such records for inspection by an officer deputed for the purpose by the Licensing Authority.

42.

Provision of electricity.

- In the premises sufficient number of approved electric lights, fan from an independent source or sources which are automatically switched on in case of failure of main lighting shall be provided in the place of exhibition, gangways, passages and exits.

43.

Exhibition for fire extinguishers.

(1)

In the place of exhibition sufficient number of portable fire-extinguishers of soda acid type and of the ten litre size shall be installed at an adequate height from the ground to the satisfaction of the Licensing Authority. A record regarding the maintenance on portable extinguishers shall be maintained.

(2)

Sufficient number of buckets with water shall be provided in the licensed premises. Buckets shall be painted in red with the word "FIRE" printed on them in large block letters in local vernacular.

Part VIII

Transfer of Assignment of Licence

44.

Transfer of assignment of licence.

- When a licensee desires to transfer or assign his licence to some other persons, he shall together with the person to whom he desires to make the transfer or assignment, make a joint application in writing to the Licensing Authority setting forth the reasons for the proposed transfer or assignment and giving the required particulars.

45.

Transfer to legal heirs.

- Where the licensee is dead, any of his legal heirs may within a period of six months from the date of the death of the licensee make an application to the Licensing Authority for the transfer of the licence in his name, giving the particulars.

46.

Fee for transfer of assignment of licence.

- For the transfer of assignment of licence, a fee shall be charged as follows:

(a)

When an application is made under Rule 44 - Rupees one hundred and fifty only.

(b)

When an application is made under Rule 45 - Rupees two hundred only.

47.

Contents of application for transfer.

- Every application for transfer of assignment of a licence shall be accompanied by-

(a)

treasury receipt for the payment of fees at the rate prescribed in Rule 46;

(b)

the licence along with a copy of the instrument, if any, proposed to be executed by the applicants in respect of the transfer of assignment of the licence.

Explanation. - In the case of an application made by any of the legal heirs of the deceased licensee the applicant shall send the consent statement obtained from all the other legal heirs of the deceased licensee for the transfer of assignment of the licence in his favour.

48.

Approval for transfer of assignment.

- The Licensing Authority shall, after considering the status, antecedent and previous experience of the parties to the application concerned, make an order to approve the transfer of assignment of the licence with prior approval of the Government.

Part IX

49.

Revocation or suspension of licence.

- The Licensing Authority may at its discretion revoke or suspend the licence granted to any licence within its jurisdiction if it is satisfied-

(a)

that the licence was obtained through fraud or misrepresentation; or

(b)

that the licensee was committed a breach of any of the provisions of the Act or the Rules made thereunder or of any condition or restriction contained in the licence or of any direction issued under sub-section (2) of Section 5 of the Act; or

(c)

that the building and installation are not maintained in proper order; or

(d)

that the cinema premises is used or conducted in a manner prejudicial to the public interest:

Provided that the Licensing Authority shall give the licensee an opportunity to show cause before taking any action under this sub-rule.

50.

Appeal under Section 9 of the Act.

- Where the order suspending, cancelling or revoking a licence under Rule 49, had been passed by a Licensing Authority any person aggrieved by the order may, within the period prescribed under Section 9 of the Act, prefer an appeal on payment of fees of Rs. 100 and Rs. 50 for each of the permanent and temporary Video Cinema Licences respectively to the Government or to such other officer as the Government may authorise in this behalf. The decision of the Government shall be final.

51.

Saving.

- Nothing in the Assam Cinemas (Regulation) Rules, 1960 shall apply to cinemas to which these rules apply.

Form A

[Rule 11]

No Objection Certificate

In exercise of the powers conferred by Rule 11 (3) of The Assam Cinemas (Regulation of Exhibition of Film of Video Cassette Recorders) Rules, 1993", I,.....District Magistrate of.....District do hereby grant this certificate that there is no objection to Shri/Smt.....P.S..... in District according to the approved plan and the Site Plan enclosed herewith.

This "No objection certificate" is valid for a period of one year from the date thereof and if within this period the proposed cinema house is not constructed, a fresh "No Objection Certificate" should be applied for.

This certificate does not of itself authorise the use of the proposed building for cinematographic exhibition nor does it by any means guarantee the issue of Video Cinema Licence which depends on separate application.

Dated, the.....

District Magistrate.....District

Form B

[Rule 16]

The Assam Cinema (Regulation of Exhibition of Film by Video Cassette Recorders) Rules, 1993

Form of Permanent Video Cinema Licence

No.....

Shri/Smti. (a).....of (b).....within the District of.....is licensed under Section 4 of the Assam Cinemas (Regulation) Act, 1953 to hold Video Cinema Exhibition by means of video apparatus.

This licence shall remain in force only for a period of one year from the date of issue of this licence. The licence is granted subject to the provisions of the Assam Cinema (Regulation of Exhibition of Film of Video Cassette Recorders) Rules, 1993 and subject to the conditions and restrictions set forth in the schedule of this licence attached.

Dated, the.....

District Magistrate.....District

of Conditions and Restrictions

(Printed at the end)

Form C

[Rule 20]

The Assam Cinema (Regulation of Exhibition of Film by Video Cassette Recorders) Rules, 1993

Form of Temporary Video Cinema Licence

No.....

Shri/Smti. (a).....of (b).....within the District of.....is licensed under Section 4 of the Assam Cinemas (Regulation) Act, 1953 to hold Video Cinema Exhibition by means of Video apparatus;

This licence shall remain in force only for a period of six months from the date of issue of this licence. The licence is granted subject to the provisions of the Assam Cinema (Regulation of Exhibition of Film by Video Cassette Recorders) Rules, 1993 and subject to the conditions and restrictions set forth in the schedule of this licence attached.

Dated, the.....

District Magistrate.....District

of Conditions and Restrictions

(Printed at the end)

Form D

[Rule 24]

The Assam Cinema (Regulation of Exhibition of Film by Video Cassette Recorders) Rules, 1993

Form of Temporary Touring Video Cinema Licence

No.....

Shri/Smti. (a).....of (b).....within the District of.....is licensed under Section 4 of the Assam Cinemas (Regulation) Act, 1953 to hold Video Cinema Exhibition by means of Video Apparatus.

This licence shall remain in force only for a period of six months from the date of issue of this licence. The licence is granted subject to the provisions of the Assam Cinema (Regulation of Exhibition of Film by Video Cassette Recorders), Rules, 1993 and subject to the conditions and restrictions set forth in the schedule of this licence attached.

Dated, the.....

District Magistrate.....District

of Conditions and Restrictions

(Printed at the end)

Form E

[Rule 26]

Form of application for Video Library Licence

1. Name of applicant.
2. Full address of applicant
3. Title of the Video Library location
4. Do you own the place of building to be used for Video Library? If so, attach the lease deed
5. Have you taken the place or building on lease? If so attach the lease deed
6. Attach the Treasury Receipts for payments of licence fee
7. Amount of licence fee (as per Rule 29)
8. Attach a true copy of "No Objection Certificate" from the Local Authority concerned.

9. Attach a clearance certificate from the Superintendent of Taxes of the area concerned to the effect that no amount of tax due under the Assam Amusement and Betting Tax Act, 1939, has remained unpaid.

Signature of applicant

Form F

[Rule 27]

The Assam Cinema (Regulation of Exhibition of Film by Video Cinema Cassette Recorders) Rules 1993

Form of Video Library Licence

No.....

Shri/Smti. (a).....of (b) within the district of.....is licensed under Section 4 of the Assam Cinema (Regulation) Act, 1953 to keep Video Library.

This licence shall remain in force only for a period of one year from the date of issue of this licence. The licence is granted subject to the provisions of the Assam Cinema (Regulation of Exhibition of Film by Video Cassette Recorders) Rules, 1993 and subject to the conditions and restrictions set forth on the schedule of this licence attached.

Dated, the.....

District Magistrate.....District

of Conditions and Restrictions

(1)

This licence does not exempt the licensee or his servants or agents from taking out any other licence required by or otherwise complying with any other law or rules or by-laws made thereunder.

(2)

The Licensing Authority and any subordinate duly authorised by him in that behalf and any police officer deputed to keep order shall at all times have free access to the said premises in order to see whether the conditions of the licence are fulfilled.

(3)

The licensee shall in respect of each film in his possession produce when demanded by any officer as may be authorised by the Licensing Authority a letter of consent from the person who is the first owner if the copyright of the Cinematograph Film, under Section 17 of the Copyright Act, 1957 and in case such copyright has been assigned under Section 18 of the said Act, from the assignee of such copyright.

(4)

The licensee shall not possess any film other than a film which has been certified as suitable for public exhibition by the authority constituted under Section 13 of the Cinematograph Act, 1952 and which, when exhibited displays the prescribed mark of that authority and has not been altered or tampered with in any way since such mark was affixed thereto.

(5)

The licensee shall submit a report to the Licensing Authority every month regarding acquisition of new Video Films as well as the total stock.

(6)

This licence shall be subject to cancellation or suspension for the breach of any of these conditions and restrictions.

Insertions in Forms B, C and D by Notification No. GCN. 5/94/116 dated the 27th February 1997.

Insertion in Forms B, C and D - In the Assam Cinema (Regulation of Film by Video Cassette Recorders) Rules, 1993, in Forms B, C and D respectively after the existing provision the following shall be inserted namely-

"1 This licence does not exempt the licensee or his servants or agent from taking out any other licence required by or otherwise complying with any other law or rule, by law made thereunder.

2. (a) The licensee shall not exhibit or permit to be exhibited any film other than a film which has been certified as suitable for public exhibition by the authority constituted under Section 4 of the Cinematograph Act, 1952, and which when exhibited displays the prescribed mark of that authority, and has not been altered or tampered with any way since such mark was affixed thereto.

(b)

The licensee shall not exhibit, or permit to be exhibited in the place in respect of which this licence is given to any person who is not an adult any film which has been certified by an authority constituted under Section 4 of the Cinematograph Act, 1952 as suitable for public exhibition restricted to adults.

Explanation. - This condition shall be construed as prohibiting the exhibiting of a film, in respect of which an "A" certificate has been granted to children in arms below the age of three.

(c)

The licensee shall not display or cause to be displayed, any photograph picture or poster which depicts or represents or purports to represent a scene or short which from any film under the orders of the Central Board of Film Censors.

(d)

There shall be prominently exhibited at each public entrance whenever the premise are open to the public, a notice indicating in tabular form and in clear bold letters and figured :

(i)

the title of each film to be shown on the other than trailers and advertisement film;

(ii)

whether each such film has received an "A" or "U" Certificate from the Central Board of Film Censors ; and

(iii)

whether persons below the age of 18 years, other than children below the age of three years will be admitted or not;

(e)

The nature of any certificate received in respect of a film from the Central Board of Film Censors, shall clearly be indicated by the letter "U" and "A" in any advertisement of the film displayed at the premises.

2.

A (i) External loud speakers in any exhibition of film as a source of attraction shall be prohibited.

(ii)

The sound inside the theatre shall be kept at the optimum level that is really necessary or comfortable hearing and shall not be too loud or noisy.

3. The licensee shall not exhibit advertisement slide relating to sexual disease and medicines to correct sexual disorders or purporting to assist the childless in begetting children.

4. The licensee shall not permit obscene or objectionable posters or pictorial publicity material to be displayed in the licensed premises.

5. The grant of this licence is subject to any orders that may be passed by the State Government under Section 8 of the Act.

6. The actual rates of payment for admission to the different classes in the licensed premises shall be as indicated below and these rates shall not be altered during currency of this licence without an order in writing by the Licensing Authority permitting such increase.

Class of Accommodation - Actual rates of admission. -

7. The Licensing Authority and any subordinate duly authorised by him in that behalf and any police officer deputed to keep order during any entertainment in the licensed premises shall at all times have free access to the said premises in order to see whether the conditions of the licence are fulfilled.

8. The licensee shall comply with such directions as the State Government may by general or special order given as to the manner in which approved films shall be exhibited in the course of any performance.

9. The licensee shall also comply with the directions as the Licensing Authority may give in regard to the exhibition of slides in each performance.

10. No firework shall be used as an adjunct to a place of exhibition

11. The licensee shall not, without the permission of the licensing authority assign, sublet or otherwise transfer the licence or the licensed premises; nor shall licensee without permission as aforesaid allow any other person during the period of currency of the licence, to exhibit films in the licensed premises.

12. The licensed premises shall not be kept open before 2 p.m. or after midnight on any day without obtaining special permission in writing from the licensing authority in respect of such day.

The hour fixed by the Licensing Authority with due regard to local condition (but not earlier than 12 midnight and not later than 1.30 a.m.) should be entered.

13. The licensee shall conduct not more than (three) shows within the maximum permitted exhibition time in a day:

Provided that on local festival days, or public holidays one special show per day over and above the three shows, may be permitted by the Licensing Authority (subject to the condition that for conducting) a special show on public holidays and Sundays the licensee shall obtain prior permission of the Licensing Authority.

14. The licensee shall ensure that no dispute arising out of ownership or possession of the site, building or equipment is likely to cause any breach of the peace at any time.
15. The licensee or his nominee is to be present during the time of exhibiting Video Show.
16. The State Government may, from time to time issue directions to licensees generally or to any licensee in particular for the purpose of regulating the exhibition of any film or class of films, so that scientific films, films intended for educational purposes, films dealing with news and current events documentary films or indigenous films secure an adequate opportunity of being exhibited, or where any such directions have been issued those directions shall be deemed to be additional conditions and restrictions subject to which the licence has been granted.
17. The licensee shall provide a suitable cycle stand for the cycles that may reasonably be expected to be brought and arrange for taking care of them. He shall also make necessary arrangements to look after the cars, scooters and motor cycles where are brought to the licensed premises.
18. This licence shall be subject to cancellation or suspension for the breach of any of these conditions and restrictions."

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Translation